

5.—(1) This Act may be cited as the Colonial Development and Welfare (Amendment) Act, 1959, and the Colonial Development and Welfare Acts, 1940 to 1955, and this Act may be cited together as the Colonial Development and Welfare Acts, 1940 to 1959. Short title,  
repeals, and  
commence-  
ment.

(2) The enactments specified in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

## SCHEDULE

Section 5.

### REPEALS

| Session and Chapter     | Short Title                                     | Extent of Repeal                                |
|-------------------------|-------------------------------------------------|-------------------------------------------------|
| 3 & 4 Geo. 6.<br>c. 40. | The Colonial Development and Welfare Act, 1940. | In section one, subsection (5).                 |
| 3 & 4 Eliz. 2.<br>c. 6. | The Colonial Development and Welfare Act, 1955. | In section one, subsection (4).<br>Section two. |

## CHAPTER 30

An Act to amend sections twenty-four and twenty-nine  
of the National Assistance Act, 1948.

[30th April, 1959]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section twenty-four of the National Assistance Act, 1948 (which makes provision for determining the local authority liable for the provision of accommodation for any person under Part III of that Act by reference to the ordinary residence of that person) shall have effect, and, subject to subsection (3) of this section, be deemed always to have had effect, as if at the end thereof there were added the following subsection, that is to say—

Determination  
of ordinary  
residence  
in certain  
cases.  
11 & 12 Geo. 6.  
c. 29.

“(6) For the purposes of the provision of residential accommodation under this Part of this Act, a patient in a hospital forming part of the hospital and specialist services

9 & 10 Geo. 6.  
c. 81.  
10 & 11 Geo. 6.  
c. 27.

provided under Part II of the National Health Service Act, 1946, or Part II of the National Health Service (Scotland) Act, 1947, shall be deemed to be ordinarily resident in the area, if any, in which he was ordinarily resident immediately before he was admitted as a patient to the hospital, whether or not he in fact continues to be ordinarily resident in that area."

(2) Subsection (7) of section twenty-nine of the said Act of 1948 (which, with a view to determining the local authority liable for any expenditure incurred, provides that a person engaged in work in such a workshop as is therein mentioned shall be deemed to be ordinarily resident in the area in which he was ordinarily resident immediately before he became engaged in the work) shall have effect, and, subject to subsection (3) of this section, be deemed always to have had effect, as if for the words "became engaged in the work" there were substituted the words "was accepted for work in that workshop; and for the purposes of this subsection a course of training in such a workshop shall be deemed to be work in that workshop".

(3) Nothing in this section shall authorise the recovery by any local authority from any other local authority after the date of the passing of this Act of any expenditure incurred before that date.

Citation  
and extent.

2.—(1) This Act may be cited as the National Assistance (Amendment) Act, 1959, and this Act and the National Assistance Acts, 1948 and 1951, may be cited together as the National Assistance Acts, 1948 to 1959.

(2) This Act shall not extend to Northern Ireland

## CHAPTER 31

An Act to empower the Minister of Agriculture, Fisheries and Food and the Secretary of State to make provision by regulations as to the payment of improvement grants under the Hill Farming and Livestock Rearing Acts, 1946 to 1956, and as to the payment of grants and contributions under certain other enactments; and for purposes connected therewith. [30th April, 1959]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—